

**THE MARRIAGE FUNCTIONS (PROHIBITION OF OSTENTATIOUS
DISPLAYS AND WASTEFUL EXPENSES) ORDINANCE 2000**

Ordinance No. II of 2000

[13th January
2000]

AN ORDINANCE whereas it is expedient to provide for the prohibition of ostentatious displays and wasteful expenses on marriages and ceremonies related thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999 and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by the Provisional Constitution Order No. 1 of 1999 as amended including the Provisional Constitution (Amendment) Order No. 9 of 1999, the President, on the advice of the Chief Executive, is pleased to make and promulgate the following Ordinance:

1. Short title, extent and commencement. —(1) This Ordinance may be called the Marriage Functions (Prohibition of Ostentatious Displays and Wasteful Expenses) Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Interpretation. For the purposes of this Ordinance the expression "marriage" shall include all ceremonies, preceding and succeeding the formal wedding whether religious or civil rituals such as *nikah*, *rukhsati*, *walima*, *mehndi*, *rasme-hina*, and other functions and celebrations connected with marriage and related festivities.

3 Prohibition of ostentatious celebrations.—(1) to sub-section (2) no person celebrating his marriage or the marriage of any other person shall

(a) decorate or cause to be decorated any house or building including any space appertaining thereto, street, road or other place whether owned by him or otherwise with lights or illumination;

(b) explode or allow any one to explode cracker or other explosive device including firing by firearm; or

(c) display or allow any one to display fire-works.

(2) Restriction on wasteful expenses. Nothing contained in sub-section (1) shall prohibit the use of such lights as are ordinarily necessary to lit the house or any other place being the site of marriage.

4. Restriction on wasteful expenses.— (1) No person celebrating his or the marriage of any other person shall serve or allow any one to serve meals or other edibles to persons participating in the marriage in a club, hotel, restaurant, wedding hall,

community centre or any other place except ¹[(1) one dish, which means one salan, rice with roti and one sweet dish with]hot and cold soft drinks.

¹Ins. by the Marriage Functions (Prohibition of Ostentatious Displays and Wasteful Expenses) (Amdt.) Act, 2006.(4 of 2006), s. 2.

(2) Nothing contained in sub-section (1) shall apply to the eating of meals within the house by the members of family celebrating the marriage or the house guests.

5. Application of the Ordinance to hotels, restaurants, etc. No person owning or running a hotel, restaurant, wedding hall, community centre, or club being the site of a marriage ceremony or any caterer shall serve or allow any one to serve any meals or edibles to the persons participating in the marriage ceremony other than hot and cold soft drinks.

6. Offences. Whoever contravenes the provisions of section 3, section 4 or section 5 shall be guilty of an offence punishable with simple imprisonment for a term which may extend to one month or with fine which shall be not less than one hundred thousand rupees and not more than five hundred thousand rupees or with both.

7. Cognizance of offences. —(1) The offences under this Ordinance shall be noncognizable and no court shall take cognizance of an offence under this Ordinance except on a complaint in writing by an officer or agency as the Federal Government or a Provincial Government may, by notification in the official Gazette, appoint.

(2) No court inferior to that of the Magistrate of the first class shall try an offence under this Ordinance.

(3) Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898, (Act V of 1898) it shall be lawful for any Magistrate of the first class to pass any sentence authorized by this Ordinance even if such sentence exceeds his power under the said section 32.